

Invisible Victims

Psychological and Social Consequences of Digital Surveillance

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Abstract

Digital surveillance technologies have expanded dramatically over the past decade, yet scholarly and legal attention to the individuals harmed by these practices remains limited. This literature review examines the psychological and social consequences of intrusive digital surveillance, with a focus on how covert monitoring produces a form of victimization that is frequently invisible and difficult to recognize or address through traditional criminal justice frameworks. The reviewed literature consistently identifies psychological effects such as anxiety, fear, hypervigilance, and loss of personal autonomy, alongside broader social consequences including self-censorship, withdrawal from professional or civic engagement, and erosion of trust in both personal and institutional relationships. Across studies, victims frequently report difficulty identifying, proving, or reporting surveillance, which allows harm to persist and limits access to legal or social remedies. The findings suggest that digital surveillance produces real and measurable harm that extends beyond individual victims to affect communities, democratic participation, and institutional functioning. Existing legal and criminological frameworks remain poorly equipped to address these harms, underscoring the urgent need for expanded victimological models and more accountable surveillance governance.

Invisible Victims: Psychological and Social Consequences of Digital Surveillance

The rapid expansion of digital surveillance technologies has fundamentally altered how governments, corporations, and private actors collect, analyze, and act on personal data (Ragnedda, 2011; Taylor, 2017). Across the globe, surveillance infrastructure has grown at a pace that far outstrips the development of legal protections for the individuals it affects. By 2023, an estimated 80% of countries had deployed some form of digital surveillance technology, including facial recognition, mass data collection, and internet monitoring. Yet fewer than half had enacted comprehensive data protection legislation (Freedom House, 2023). In the United States alone, federal agencies made over 3.4 million surveillance requests to major technology platforms in a single year, with the vast majority of affected users never notified that their data had been accessed (Electronic Frontier Foundation, 2022). These figures illustrate a critical imbalance: surveillance capabilities are expanding rapidly while accountability mechanisms and victim protections lag far behind.

Advances in digital infrastructure, mobile connectivity, and data analytics—combined with post-9/11 security paradigms and corporate data practices—have normalized continuous monitoring across many areas of social life (Murray et al., 2024). Although surveillance is frequently justified as a tool for public safety, national security, or platform efficiency, legal protections for civil liberties, data rights, and accountability have not evolved at the same pace as surveillance capabilities (Vološevici & Isbasoiu, 2025). As a result, individuals are increasingly

exposed to systems of monitoring characterized by limited transparency, restricted avenues for redress, and uneven legal safeguards across political and geographic contexts (Taylor, 2017).

Research across surveillance studies, journalism studies, and human rights scholarship demonstrates that surveillance produces consequences beyond technical or legal risk (Di Salvo, 2022; Murray et al., 2024). Studies consistently document psychological and behavioral effects such as anxiety, heightened self-awareness, behavioral restraint, and self-censorship, as individuals internalize the possibility of being observed and adjust their conduct accordingly (Voloșevici & Isbasoiu, 2025). These dynamics are particularly evident among journalists, activists, and other politically exposed or high-risk populations, where concerns about surveillance shape professional practices, source communication, and participation in civic life (Di Salvo, 2022). At the same time, surveillance pressures extend beyond professional contexts, influencing everyday political expression, protest, and engagement in public discourse (Murray et al., 2024).

A recurring theme across this literature is that the harms of surveillance are difficult to identify, document, or classify within traditional legal and criminological frameworks (Gilman & Green, 2018). Many affected individuals are unable to confirm whether they have been surveilled, identify responsible actors, or demonstrate harm in ways that meet current institutional thresholds for recognition. These barriers are especially pronounced in cases involving covert monitoring technologies, spyware, cross-border data flows, or opaque partnerships between state and corporate actors (Murray et al., 2024). As a result, individuals

subjected to intrusive digital surveillance often experience what scholars describe as invisible victimization, in which psychological stress, behavioral modification, and loss of autonomy remain largely unrecognized by criminal justice systems.

Traditional criminological frameworks have historically defined crime and harm in terms of physical violence, property loss, or direct interpersonal victimization. Within this model, harm is typically understood as visible, event-based, and attributable to a specific offender. However, contemporary scholars argue that such definitions fail to capture emerging forms of harm produced through covert, technologically mediated mechanisms. Research on technology-facilitated monitoring demonstrates that harm can occur without physical contact or overt coercion, producing fear, stress, and long-term emotional consequences even in the absence of identifiable criminal acts. The concept of the invisible victim is therefore central to understanding the consequences of digital surveillance. Victims of covert monitoring often experience harm privately, without institutional recognition or access to justice. Surveillance operates quietly and persistently, altering behavior and emotional well-being without clear markers of victimization (Voloșevici & Isbasoiu, 2025).

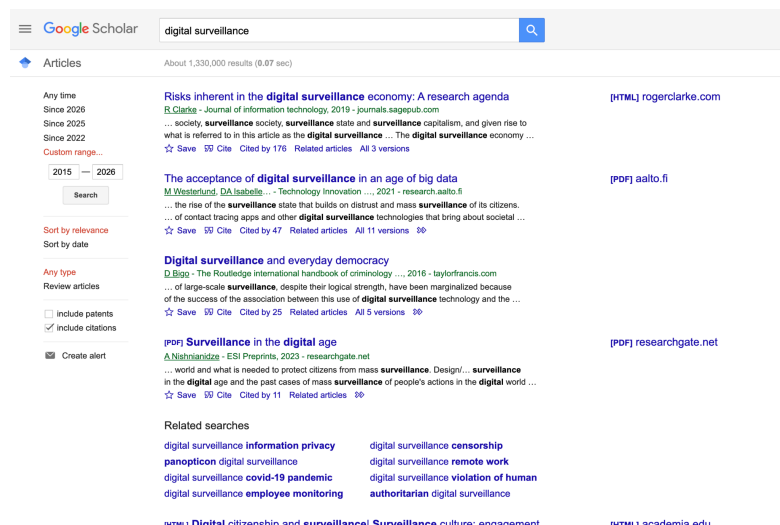
The purpose of this literature review is to examine the psychological and social consequences of intrusive digital surveillance and to assess how existing criminological and victimological research conceptualizes this form of harm.

Methods

This literature review was completed through a structured but evolving search process focused on peer-reviewed research addressing digital surveillance, victimization, and psychological and social harm.

Initial Search Strategy

The search began with broad keyword terms including digital surveillance, online monitoring, and privacy. These searches were conducted through Google Scholar, PsycINFO, Criminal Justice Abstracts, and Sociological Abstracts. While these initial searches produced a large number of results, the vast majority focused on cybersecurity systems, national security programs, encryption technologies, or abstract legal frameworks. Very few of the early results addressed the lived experiences of individuals affected by surveillance or the psychological and social consequences of being monitored. The screenshot below documents a representative early search result page to illustrate both the volume and the thematic mismatch of initial returns.



Search Refinement and Keyword Development

After reviewing several early results, it became clear that more targeted search terms were needed to find articles focused on victimization and harm rather than on technical or policy dimensions of surveillance systems. The search strategy was refined to incorporate experience-centered language. New keyword combinations included: psychological impact of surveillance, covert monitoring and anxiety, technology-facilitated abuse, self-regulation in monitored environments, human rights violations due to digital surveillance, effects on journalism, and surveillance and behavioral modification. These terms were searched both individually and in combinations to narrow results to studies that explicitly addressed human behavior, emotional responses, or social consequences.

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Search by keyword

surveillance AND psychological imp

Sort by Relevance **Display** 25

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☐ Include archived content

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- Children
- Equity, Diversity, and Inclusion
- Healthy Workplaces
- LGBTQ
- Older Adults and Aging
- Race and Ethnicity
- Research
- Teens

Content Type

APA Publications

183 results for "surveillance AND psychological impact AND behavior"

Psychologists advocate for autism amid a wave of misinformation
Recent policy shifts have stoked fears of stigma and surveillance and undermined crucial care.
September 2025 Magazine Article

How psychologists can combat the racial inequities of the COVID-19 crisis
The pandemic is having a disproportionate impact on marginalized groups. As experts in behavior, psychologists can help change that.
May 2020 Article

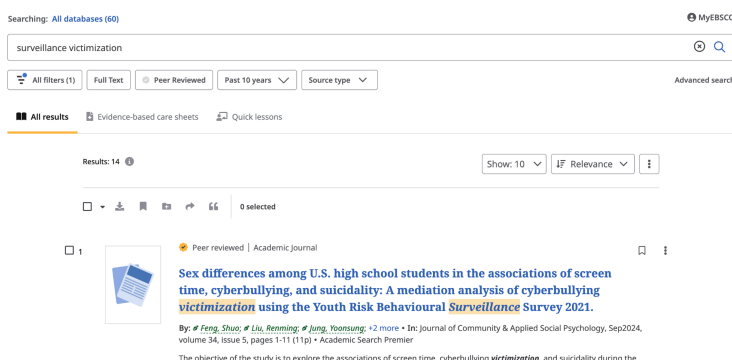
Exercise and cognition, active learning, negotiation gender gap
For most people, any kind of exercise (even one-time workouts) has immediate benefits for cognitive functioning. Plus many more research highlights.

to help us understand where we can improve. If this bothers you, please click to configure how we use

[Configure](#) [Accept All](#)

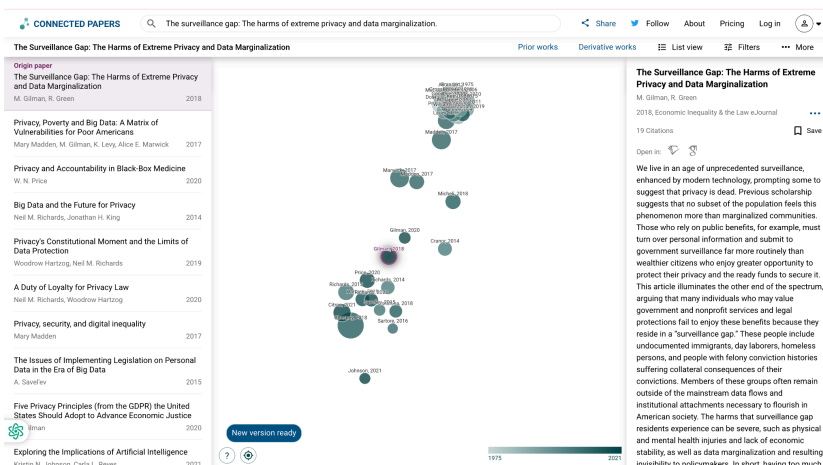
This refinement produced significantly fewer results overall, but the articles that appeared were far more relevant to the research question. Many directly addressed self-censorship, emotional distress, behavioral modification, and social consequences linked to monitoring. The shift in search strategy also revealed that surveillance-related harm is studied across multiple disciplines, including criminology, psychology, sociology, journalism studies, human rights scholarship, and

surveillance studies, which meant that no single database captured the full range of relevant literature.



Inclusion Criteria and Final Selection

To be included in the final review, articles had to meet three criteria. First, they had to be peer-reviewed journal articles. Second, they had to be published in 2015 or later, unless they represented foundational theoretical contributions necessary for contextual framing. Third, and most importantly, they had to explicitly address psychological, social, or behavioral consequences of surveillance or surveillance-like practices. Articles were excluded if they focused exclusively on technological development, data efficiency, encryption systems, or legal doctrine without discussion of lived experience or harm.



Studies that discussed privacy only in abstract or regulatory terms were also excluded. In addition to database searches, the reference lists of selected articles were reviewed to identify frequently cited studies (through Connected Papers) not captured through keyword searches, which helped confirm thematic patterns and identify foundational works. Through this process, six core articles were selected.

Reflection on the Search Process

This search process was more challenging than anticipated. One difficulty was the sheer volume of surveillance-related literature that focuses on technology and law rather than on people. Narrowing from broad terms to victim-centered keywords required multiple iterations and a willingness to move away from the initial framing of the topic. Another challenge was the interdisciplinary spread of relevant scholarship: the most useful articles were spread across criminology, psychology, journalism studies, and human rights law, meaning that no single database was sufficient and that articles frequently used different terminology for similar phenomena. Personally, this process reinforced how difficult it is to study “invisible” harm; the challenge of finding literature on surveillance victimization mirrored the challenge that victims themselves face in naming and documenting what has happened to them. The search process itself became a kind of methodological illustration of the paper’s central argument.

Literature Review

Theme 1: Structural Visibility, Data Marginalization, and the Surveillance Gap

Gilman, M., & Green, R. (2018). The surveillance gap: The harms of extreme privacy and data marginalization. *NYU Review of Law & Social Change*, 42(2), 253–314.

Gilman and Green (2018) introduce and theorize the concept of the "surveillance gap," arguing that marginalized populations experience harm not only through excessive surveillance but also through systemic invisibility within data and institutional systems. The central aim of the article is to challenge dominant privacy scholarship by demonstrating that privacy can itself be harmful when individuals are excluded from the data infrastructures necessary to access social services, legal protections, and political participation. The underlying theoretical framework draws on feminist legal theory, critical race scholarship, and surveillance studies to argue that privacy is not a universal good but a contextual and unequal condition—one that functions very differently depending on a person's social position. The research question is fundamentally normative: how does excessive privacy, understood as data invisibility or exclusion, operate as a form of social control, and why do existing legal frameworks fail to account for this harm?

The study employs a qualitative, interdisciplinary socio-legal methodology. The authors did not collect original data; instead, they used a combination of conceptual analysis, legal doctrine review, and illustrative case studies grounded in existing empirical research, government reports, court decisions, and cross-disciplinary scholarly literature. The article is organized around four case studies of populations that exemplify the surveillance gap—undocumented

immigrants, day laborers, homeless individuals, and people with felony conviction histories—using these examples to demonstrate how legal systems, administrative practices, and data infrastructures produce invisibility. Comparative analysis between U.S. and European privacy regimes further illustrates how differing legal frameworks shape patterns of surveillance and exclusion.

The article finds that marginalized populations often live at "privacy extremes," experiencing intense monitoring by law enforcement, immigration, or welfare systems while remaining invisible to institutions that provide healthcare, labor protections, housing assistance, or voting access. This invisibility results in material harms, including economic instability, physical and mental health injuries, lack of legal remedies, and political exclusion. The surveillance gap is structurally produced through data silos, fear-driven system avoidance, criminalization, and economic incentives that benefit employers and political elites. The study is significant because it reframes privacy as a site of structural inequality rather than a straightforward individual right, revealing how data exclusion functions as a mechanism of social control. Its primary limitation is the absence of original empirical data, which limits the ability to assess the scope or prevalence of the surveillance gap across different populations or regions.

This article connects thematically to Taylor's (2017) work on data justice and establishes the structural foundation for understanding why certain populations experience surveillance harms differently. Together, these two studies show that surveillance-related harm is not distributed equally—it is produced and reproduced by institutional systems that render some

people hyper-visible to punitive control while keeping them invisible to protective resources.

This pairing grounds the rest of the literature review in a structural framework that contextualizes the more individual-level psychological and behavioral findings that follow.

Theme 2: Data Systems as Instruments of Power and Inequality

Taylor, L. (2017). What is data justice? The case for connecting digital rights and freedoms globally. *Big Data & Society*, 4(2), 1–14. <https://doi.org/10.1177/2053951717736335>

Taylor (2017) develops a conceptual framework for "data justice," arguing that data systems function as mechanisms of power that shape visibility, representation, and structural inequality on a global scale. Rather than treating data governance as a neutral regulatory question, the article frames data as a site of political struggle with profound implications for who is monitored, who receives services, and who is excluded from both. Taylor identifies a central problem in contemporary governance: while data technologies have expanded rapidly, the social justice implications of how data are collected, used, and enforced have not kept pace. The article asks what justice should look like in a world where people are governed and profiled through the data they produce, calling for a framework that addresses fairness, representation, autonomy, and discrimination globally rather than relying solely on narrow privacy law.

Although the article is primarily theoretical, it is grounded in extensive empirical research conducted between 2012 and 2016, including approximately 200 interviews, field observations,

and participation in advisory groups and public discussions on data ethics. Participants came from academic, development, humanitarian, technology, government, and activist sectors across the United States, European Union, Africa, and Asia. Fieldwork took place in both corporate and public-sector settings, including mobile operators in Europe and a government datafication project in Bangalore, India. The author combines this qualitative research with legal scholarship, political theory, and comparative case analysis to build a cross-disciplinary framework.

The article illustrates data injustice through two key cases. India's Aadhaar biometric identification system was designed to reduce welfare fraud but disproportionately excluded poor people whose biometric markers—worn fingerprints, lack of mobile access—could not be reliably captured, denying them food and welfare benefits. A proposed EU migration monitoring system using satellite data and algorithmic predictions would classify migrants and potentially limit asylum access, embedding structural inequality into automated decision-making. Both cases demonstrate how data systems co-produced by public and private actors can simultaneously enable care and control, often to the detriment of those with the least power. Taylor's proposed three pillars of data justice—(in)visibility, (dis)engagement, and anti-discrimination—provide a normative architecture for evaluating these systems. The primary limitation of this work is that it remains at the level of principle, providing limited concrete guidance for how data justice should be implemented in regulatory frameworks across different political and legal contexts.

Read alongside Gilman and Green (2018), Taylor's framework extends the structural analysis of the surveillance gap into a global and policy-oriented register. Where Gilman and

Green focus on U.S. institutional contexts, Taylor demonstrates that data-driven harm operates transnationally and is embedded in systems that touch everything from biometric identification to migration control. Together, these two articles form a coherent thematic cluster showing that surveillance-related harm is not incidental but is structurally produced—and that addressing it requires rethinking not just privacy law but the broader governance of data systems.

Theme 3: Psychological Harm, Self-Regulation, and Behavioral Modification

Volosevici, D., & Isbasoiu, G. D. (2025). Surveillance as a socio-technical system: Behavioral impacts and self-regulation in monitored environments. *Systems*, 13(7), Article 614.

<https://doi.org/10.3390/systems13070614>

Volosevici and Isbasoiu (2025) examine how video surveillance functions as a socio-technical system that shapes behavior by generating psychological pressure and self-regulation. The central argument is that surveillance produces behavioral effects not through direct enforcement but through the internalized belief that one might be watched, a dynamic rooted in Foucauldian panoptic theory. Rather than focusing on whether cameras prevent crime or support accountability, the authors examine what surveillance does to people psychologically and socially in everyday settings. The core research question is whether perceived monitoring creates sufficient psychological pressure to produce self-censorship and behavioral modification, even in the absence of any direct consequence. The study is grounded in theories of panoptic

self-regulation and surveillance-related anxiety, and it operationalizes these constructs empirically, a methodological contribution that is relatively rare in this field.

The study uses a quantitative, survey-based design. The authors administered a structured questionnaire to 358 university students and used factor analysis to develop and confirm key variables, followed by ordinal logistic regression and mediation analysis to test relationships between constructs. The three central variables are perceived psychological pressure, behavioral modification, and perceived omnipresence or active monitoring (whether participants believed surveillance was constant and actively observed). This quantitative approach allows the authors to test causal relationships between perceived surveillance and behavioral outcomes in a way that qualitative studies cannot.

Results confirm that perceived surveillance changes behavior even without direct enforcement. Students reporting higher psychological pressure were more likely to exhibit behavioral modification: they described being more cautious, more self-aware, and more likely to withhold actions or expressions. The belief that surveillance footage was actively monitored amplified behavioral vigilance further. The perceived inescapability of surveillance raised psychological discomfort, and that discomfort was identified as the mediating mechanism linking surveillance to self-regulation. The study's primary limitation is its reliance on a university student sample, which may not reflect how older populations, workers in monitored employment settings, or individuals in heavily policed communities experience surveillance. Nevertheless, it

provides strong evidence that surveillance produces psychological harm through perception and anticipation rather than through physical intrusion.

Ragnedda, M. (2011). Social control and surveillance in the society of consumers. *International Journal of Sociology and Anthropology*, 3(6), 180–188.

Ragnedda (2011) analyzes how Information and Communication Technologies (ICTs) have transformed surveillance into a normalized and pervasive system of social control within consumer societies. The central argument is that ICT-enabled surveillance produces a "new electronic cage" that constrains individuals not through overt force but through continuous data collection, profiling, and behavioral steering. The research question is theoretical: how do modern surveillance systems rooted in consumerism, mass media, and data analytics reshape power and social control, and how do they redefine the relationship between citizenship, consumption, and freedom in post-panoptic society?

This study employs a theoretical and conceptual sociological approach, drawing on classical and contemporary social theory—particularly Foucault, Weber, Giddens, Bauman, and surveillance scholars Lyon, Marx, and Haggerty. The article traces the evolution of surveillance from the Panopticon and Weber's iron cage to the electronic cage through conceptual analysis and historical comparison. It synthesizes existing literature on ICTs, mass media, consumer surveillance, and neoliberal governance while applying these theories to contemporary practices such as data profiling, loyalty cards (which collect detailed data about shopping habits under the

guise of offering discounts, turning consumer participation into a surveillance mechanism), online tracking, and biometric technologies.

The article finds that modern surveillance has shifted from a visible, coercive, and state-centered model to a diffuse, data-driven, and normalized system co-produced by public and private actors. Contemporary social control is increasingly anticipatory, seeking to shape decisions before they occur rather than to punish deviance after the fact. Surveillance operates through soft forms of control, targeted advertising, consumer profiling, and cultural messaging that normalize compliance while preserving the illusion of individual choice. The primary limitation is the absence of empirical measurement; the article relies entirely on theoretical synthesis without tracking surveillance effects on specific populations or across demographic lines. It also stops short of concrete policy recommendations.

Read together, Volosevici and Isbasoiu (2025) and Ragnedda (2011) form a complementary pair within this theme: the former provides quantitative evidence of the psychological mechanism by which surveillance produces behavioral change, while the latter situates that mechanism within a broader theoretical account of how surveillance has become normalized as a form of social control in consumer society. Together, they establish both the micro-level psychological reality of surveillance harm and the macro-level structural context in which it operates. This dual perspective is essential for criminologists and policymakers seeking to understand why surveillance harm persists and why it is so difficult to identify and challenge within existing legal frameworks.

Theme 4: Chilling Effects on Journalism, Civic Life, and Democratic Participation

Murray, D., Fussey, P., Hove, K., Wakabi, W., Kimumwe, P., Saki, O., & Stevens, A. (2024). The chilling effects of surveillance and human rights: Insights from qualitative research in Uganda and Zimbabwe. *Journal of Human Rights Practice*, 16(1), 397–412.
<https://doi.org/10.1093/jhuman/huad020>

Murray et al. (2024) examine whether and how state surveillance produces a chilling effect on freedom of expression and association, particularly in politically repressive contexts. Rather than treating the chilling effect as a hypothetical concern or focusing only on privacy violations in the abstract, the authors ask a grounded and empirically specific question: How does the fear of surveillance actually change how people speak, associate, organize, and participate in democratic life? The study is designed to fill a gap in existing research by documenting the lived experiences of people who believe they are being surveilled, rather than relying on quantitative proxies such as internet use statistics or legal case analysis.

The authors conducted a qualitative study using semi-structured, in-depth interviews in Uganda and Zimbabwe. The final sample included 44 participants (32 from Uganda and 12 from Zimbabwe) who had either experienced or strongly suspected state surveillance, both digital and in physical spaces. Participants were intentionally selected from politically active or publicly visible populations, including journalists, human rights defenders, opposition party members, civil society leaders, and activists. Interviews explored moments of surveillance awareness, behavioral responses, changes in associational patterns, and vicarious chilling effects—how

seeing others surveilled or punished altered participants' own behavior. Data was analyzed using thematic analysis, and legal analysis was framed through the International Covenant on Civil and Political Rights (ICCPR).

Three core chilling effects emerged consistently across both countries. First, participants reported regularly modifying or suppressing speech due to fear of surveillance, including avoiding political topics in digital communication, refraining from social media posts, or speaking indirectly through metaphors. Importantly, this self-censorship extended to lawful, legitimate political expression, not just extreme or dangerous speech, and participants often censored themselves to protect family members or colleagues from guilt by association. Second, many participants avoided engaging with individuals or organizations they believed were under surveillance, which limited political dialogue, isolated activists, and extended to journalists, artists, and even diplomatic contacts. Third, surveillance created deep mistrust within activist communities—paranoia about informants, fractured relationships, and the collapse of collective organizing—directly undermining freedom of assembly and the viability of political movements. The primary limitation is that the research is conducted in authoritarian or semi-authoritarian contexts, raising questions about how strongly these chilling effects apply in liberal democracies with stronger legal safeguards.

Di Salvo, P. (2022). Information security and journalism: Mapping a nascent research field. *Sociology Compass*, 16(3), Article e12961. <https://doi.org/10.1111/soc4.12961>

Di Salvo (2022) maps the emerging field of journalism and information security research, analyzing how scholars have responded to escalating surveillance threats targeting journalists and their sources. The article does not study journalists directly but tracks how academic research on the topic has developed since major turning points like the 2013 Snowden revelations and later spyware scandals including Pegasus. The central argument is that information security has moved from a niche technical concern to a condition of press freedom itself: journalists cannot protect sources or conduct investigative work safely if their communication channels are routinely vulnerable to monitoring and intrusion. The organizing question is: What does the existing research landscape look like, and where are its gaps?

Methodologically, the article is a structured literature review using a two-step process. Di Salvo first identified the top 100 English-language journals in the Communication category using the Scimago Journal & Country Ranking and searched their archives for articles using the keyword "encryption," filtering results for pieces explicitly focused on journalists' use of information security tools or practices. In the second step, the author expanded beyond the Scimago list by adding books, book chapters, and cited articles from the initial sample to capture scholarship not indexed in those journals. Thematic analysis following Braun and Clarke's framework was applied to identify dominant patterns and cluster findings into larger thematic areas.

Research in the field falls into two broad tracks. The first is instrumental or practice-focused, examining how journalists use tools such as PGP, Signal, SecureDrop, and GlobaLeaks, often in relation to source protection, leak-based reporting, or cross-border investigative collaboration. Across this literature, encryption is treated as both necessary and difficult: adoption is uneven and shaped by technical learning curves, newsroom capacity, and situational urgency. The second track is cultural and organizational, examining how journalists understand information security, what motivates adoption, and what barriers prevent institutionalization. Studies in this area find that many journalists rely on a "security by obscurity" mindset, assuming they will not be targeted unless working on high-profile national security stories, and that security responsibilities fall on individual reporters rather than being embedded in newsroom policy. The primary gaps identified include insufficient research on spyware threats like Pegasus, limited geographic diversity outside Western contexts, and inadequate attention to aspects of security beyond encryption.

Murray et al. (2024) and Di Salvo (2022) together constitute a coherent theme around what might be called the social and institutional chilling effects of surveillance. Where Murray et al. document how surveillance reshapes individual speech and political association in repressive political contexts, Di Salvo shows how the same dynamics operate within professional institutions with consequences for public accountability and press freedom. Both studies make clear that the harm of surveillance is not contained to those directly targeted: it projects outward, reshaping the behavior of entire communities, institutions, and professions. This theme is critical

to the broader argument of this review because it demonstrates that surveillance-related harm is collective and societal in nature, not merely a private individual injury.

Discussion and Conclusion

The six reviewed articles, despite their methodological and disciplinary diversity, converge around four major themes. Together, they reframe digital surveillance as a form of victimization that is psychological, social, structural, and frequently invisible to the institutions meant to address it.

The most consistent finding across the literature is that surveillance functions as anticipatory social control. It produces real harm through the perception of monitoring rather than through discrete, punishable events. Whether operating through state infrastructure (Murray et al., 2024; Volosevici & Isbasoiu, 2025) or corporate data systems (Ragnedda, 2011; Taylor, 2017), surveillance causes people to self-regulate their speech, limit associations, and internalize constraints without any direct confrontation. The resulting anxiety, hypervigilance, and self-censorship are cumulative and diffuse in both ordinary and high-risk contexts. Yet they leave no clear evidentiary trace that traditional crime-centered victimological models can recognize or respond to.

Second, surveillance harm extends beyond individuals to entire social ecosystems. Murray et al. (2024) and Di Salvo (2022) show how fear of monitoring fractures trust within

activist communities and newsrooms, isolates journalists from sources, and suppresses the political organizing and investigative reporting that democratic participation depends on. The harm is not merely personal. It is institutional, reshaping who and what gets reported, which movements remain viable, and whose voices persist in public discourse.

Third, surveillance harm is structurally unequal. Gilman and Green (2018) and Taylor (2017) demonstrate that marginalized populations are simultaneously hyper-visible to punitive systems and invisible within the data infrastructures that confer rights, services, and legal protection. This surveillance gap dismantles the assumption that privacy is inherently protective. In many contexts, invisibility is itself the mechanism of exclusion. This tension between protection through invisibility and harm through invisibility remains one of the most unresolved challenges in surveillance governance.

These findings carry clear theoretical, practical, and policy implications. Criminology and victimology must move beyond offender-centered event-based frameworks towards developing models capable of recognizing diffuse, anticipatory, and structurally produced harm. Practically, surveillance oversight mechanisms and privacy laws are currently focused on legality and individual rights violations. They are poorly equipped to address chilling effects, collective injury, or data exclusion. Impact assessments for surveillance technologies must incorporate psychological and democratic consequences alongside security metrics.

The literature itself shares a significant limitation, however. Most research is qualitative or theoretical, making large-scale prevalence difficult to establish. Empirical studies are disproportionately focused on high-risk populations in authoritarian contexts. This leaves normalized surveillance in everyday liberal democratic life underexamined.

Four research directions follow from these gaps. First, longitudinal studies in democratic civic and workplace settings would establish the cumulative psychological effects of normalized surveillance that current cross-sectional research cannot capture. Second, comparative research between authoritarian and democratic surveillance contexts would clarify how generalized chilling effects are across different legal landscapes. This would directly inform proportionality debates in democratic law. Third, deliberately interdisciplinary work integrating victimological and data governance frameworks is needed. This work must build policy tools capable of addressing both individual and structural harm simultaneously. Fourth, participatory research conducted with—not merely about—marginalized populations affected by the surveillance gap would generate the empirical data on data exclusion. This data is almost entirely absent from the current literature.

This literature review demonstrates that digital surveillance produces real, consequential harm that is profoundly misaligned with how victimization is traditionally understood. Surveillance operates not merely as a technical practice but as a mechanism of social control. It reshapes behavior, emotional well-being, and democratic participation, often through anticipation alone, without any identifiable wrongdoing. The concept of the invisible victim captures what is

most distinctive about this harm. It is cumulative, rarely institutionally recognized, and disproportionately borne by the already vulnerable.

Recognizing surveillance-affected individuals as legitimate victims is not merely a conceptual adjustment. It is a necessary step toward building criminological frameworks, legal protections, and governance systems adequate to an increasingly datafied world.

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Delilah Hollander

AI Usage for term paper

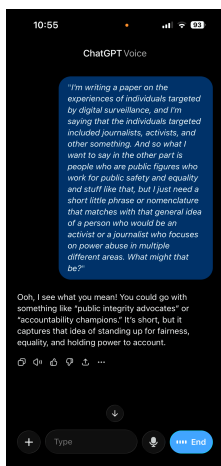
1/10/26-3/29/26

Date/Time: Entirety of paper

AI Tool Used: Grammarly

Prompt: N/A

Explanation of Changes: I utilized Grammarly throughout my paper. The options used were both spellcheck and grammar/sentence structure. While mostly this tool was used for spelling, I would presume that I also used the auto-suggestions for sentence structure as well when it came up.



Date/Time: February 7, 2026, 10:55am

AI Tool Used: ChatGPT

Prompt: "I'm writing a paper on the experiences of individuals targeted by digital surveillance, and I'm saying that the individuals targeted included journalists, activists, and other something. And so what / want to say in the other part is people who are public figures who work for public safety and equality and stuff like that, but I just need a short little phrase or nomenclature that matches with that general idea of a person who would be an activist or a journalist who focuses on power abuse in multiple different areas. What might that be?" See attached image for exact output.

Explanation of Changes: I did not change anything, just used the verbage given, "public integrity advocates", in my paper, both my full written paper as well as my

Take-Home Step 1: Topic Selection & Methods Draft

Revisions Log - April 2nd-April 17th

1. Cutting up long sentences
2. Broke up some long paragraphs
3. Fixed to the exact APA 7th edition formatting (indentations)
4. References on their own page

Example 1:

Original: "The six reviewed articles, despite their methodological and disciplinary diversity, converge around four major themes that together reframe digital surveillance as a form of victimization that is psychological, social, structural, and frequently invisible to the institutions meant to address it."

Edited into: "The six reviewed articles, despite their methodological and disciplinary diversity, converge around four major themes. Together, they reframe digital surveillance as a form of victimization that is psychological, social, structural, and frequently invisible to the institutions meant to address it."

Example 2:

Original: "The resulting anxiety, hypervigilance, and self-censorship are cumulative and diffuse in both ordinary and high-risk contexts alike, yet they leave no clear evidentiary trace that traditional crime-centered victimological models can recognize or respond to."

Edited into: "The resulting anxiety, hypervigilance, and self-censorship are cumulative and diffuse in both ordinary and high-risk contexts. Yet they leave no clear evidentiary trace that traditional crime-centered victimological models can recognize or respond to."

Example 3:

Original: "Practically, surveillance oversight mechanisms and privacy laws, which are currently focused on legality and individual rights violations, are poorly equipped to address chilling

effects, collective injury, or data exclusion; impact assessments for surveillance technologies must incorporate psychological and democratic consequences alongside security metrics."

Edited into: "Practically, surveillance oversight mechanisms and privacy laws are currently focused on legality and individual rights violations. They are poorly equipped to address chilling effects, collective injury, or data exclusion. Impact assessments for surveillance technologies must incorporate psychological and democratic consequences alongside security metrics."